



Bill Number: H.B. 2369

Farnsworth Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires a citation for a civil traffic violation or offense that is generated by a photo enforcement system to be signed by the mayor, rather than the presiding judge, of the municipality in which the violation or offense occurred.
2. Makes conforming changes.

FARNSWORTH FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2369
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-1552, Arizona Revised Statutes, is amended to
3 read:

4 28-1552. Jurisdiction of municipal and justice courts; mayor
5 of municipality signature required

6 A. Municipal courts and justice courts have concurrent jurisdiction
7 over all civil and misdemeanor criminal violations of chapters 3, 4, 5, 7,
8 8, 9, 10, 11, 14 and 15 of this title and over class 2 and 3 misdemeanor
9 criminal violations of chapter 25 of this title that are committed within
10 their boundaries by persons eighteen years of age or older.

11 B. Municipal courts and justice courts have concurrent jurisdiction
12 over civil traffic violations committed within their boundaries by persons
13 under eighteen years of age if the presiding judge of the superior court
14 in the county declined jurisdiction pursuant to section 8-202.

15 C. A CITATION THAT IS ISSUED AS A RESULT OF A CIVIL TRAFFIC
16 VIOLATION OR A MISDEMEANOR CRIMINAL OFFENSE OF THIS TITLE AND THAT IS
17 GENERATED BY A PHOTO ENFORCEMENT SYSTEM AS DEFINED IN SECTION 28-601 MUST
18 BE SIGNED BY THE [~~PRESIDING JUDGE OF THE COURT THAT IS ADJUDICATING THE~~
19 ~~CITATION~~] [MAYOR OF THE MUNICIPALITY IN WHICH THE VIOLATION OR OFFENSE

1 OCCURRED]. THE ~~[PRESIDING JUDGE]~~ [MAYOR OF THE MUNICIPALITY] MAY SIGN THE
2 CITATION BY ELECTRONIC SIGNATURE~~[,]~~ [BUT] IF THE CITATION IS NOT SIGNED
3 BY THE ~~[PRESIDING JUDGE]~~ [MAYOR OF THE MUNICIPALITY]:

4 1. THE CITATION SHALL BE DISMISSED.

5 2. THE COURT SHALL NOTIFY THE PERSON WHO IS CHARGED WITH THE
6 VIOLATION OR OFFENSE THAT THE CITATION IS DISMISSED BECAUSE THE ~~[PRESIDING~~
7 ~~JUDGE]~~ [MAYOR OF THE MUNICIPALITY] DID NOT SIGN THE CITATION.

8 Enroll and engross to conform

9 Amend title to conform

DAVID C. FARNSWORTH

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C: JR

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